Revised Penalties under amended Motor Vehicles Act

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Motor Vehicles (Amendment) Act, 2019

The Motor Vehicles (Amendment) Act, 2019 is an amendment of the Motor Vehicles Act, 1988.

The amendments in the Bill mainly focus on issues relating to improving road safety, citizens' facilitation while dealing with the transport department, strengthening rural transport, last mile connectivity and public transport, automation and computerization and enabling online services.

Enhanced penalties

The Ministry of Road Transport and Highways has notified through S.O. No 3110(E), the provisions of the Motor Vehicles Amendment Act 2019 that will be applicable with effect from 1st of September 2019. These are provisions which require no further amendments in the Central Motor Vehicles Rules 1989. Important among the provisions notified today are the provisions for enhanced penalties.

Sl. No.	Description of offence	Sections of MV(Amendment) Act 2019	Penalty

1.	Where a motor vehicle is used by a juvenile (minor)	Section 22	Vehicle registration may be cancelled for a year. After one year, a fresh application for registration is allowed to be submitted.
2.	General - penalty for offences where no penalty is specifically provided f or	Section 58	First offence - Rs. 500 and second/subsequent offence - Rs.1500.
3.	Violation of road regulations	Section 59	Penalty of Rs. 1000
4.	Traveling without ticket	Section 60	Penalty of Rs. 500.
5.	Disobedience of orders of authorities and refusal to give information	Section 61	Penalty of Rs 2000
6.	Unauthorized use of vehicles without license	Section 62	Penalty of Rs 5000
7.	Driving without license	Section 63	Penalty of Rs 5000
8.	Driving despite disqualification	Section 64	Penalty of Rs 10,000

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9.	Over-speeding	Section 66	Rs. 1000-Rs. 2000 for light motor vehicle; Rs. 2000-Rs. 4000 for medium passenger or goods vehicles and impounding of driving license for second/subsequent offence.
10.	Dangerous driving	Section 67	Imprisonment of 6 months - 1 year and/or fine of upto Rs. 1000 - Rs 5000 for first offence and Imprisonment up to 2 years and/or fine up to Rs. 10000 for second offence.
11.	Drunken driving	Section 68	Imprisonment up to 6 months and/or fine up to Rs. 10,000for first offence and Imprisonment up to 2 years and/or fine of Rs. 15,000 for second offence.
12.	Driving when mentally or physically unfit to drive	Section 69	First offence - upto Rs. 1000 and second/subsequent offence from upto Rs.2000
13.	Offences relating to accident	Section 70	Imprisonment of up to 6 months and/or fine up to Rs. 5000 for first offence and imprisonment up to 1year and/or fine up to Rs. 10,000 for second offence.
14.	Racing and speeding	Section 71	Imprisonment of up to 1 month and/or fine up to Rs. 500 for first offence and imprisonment up to 1month and/or fine up to Rs. 10,000 for second offence

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15.	Using vehicles without permit	Section 75	Imprisonment of up to 6months and/or fine up to Rs. 10,000 for first offence and imprisonment up to 1 year and/or fine up to Rs. 10,000 for second offence.
16.	Driving a motor vehicle without wearing a safety belt or carries passengers not wearing seat belts	Section 79	Fine of Rs 1000
17.	Driving a motor vehicle or causes or allows a motor vehicle to be driven with a child who, not having attained the age of fourteen years, is not secured by a safety belt or a child restraint system	.Section 79	Fine of Rs 1000

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18.	Violation of safety measures for motor cycle drivers and pillion riders, refusal to stop and submit vehicle for weighing, use of phones in silent zonesand failure to allow free passage to emergency vehicles	Section 79	Fine of Rs 1000 and disqualified for holding licence for a period of three months.
19.	Failing to draw to the side of the road,on the approach of a fire service vehicle or of an ambulance or other emergency vehicle as may be specified by the State Government,	Section 79	Imprisonment for a term which may extend to six months, or with a fine of ten thousand rupees or with both

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20.	Driver who sounds the horn needlessly or continuously or more than necessary to ensure safety, or (ii) sounds the horn in an area with a traffic sign prohibiting the use of a horn, or (b) drives a motor vehicle which makes use of a cut-out by which exhaust gases are released other than through the silencer	Section 79	Fine of Rs 1000 and for a second or subsequent offence with a fine of Rs 2000
21.	Driving uninsured vehicle	Section 81	Fine of Rs. 2000 and/or punishment up to 3 months for the first offence and f ineof Rs. 4000 and/or imprisonment up to 3 months for the second offence.

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22	Offences by juveniles	Section 85	Fine of Rs. 25,000 and imprisonment up to 3 years and cancellation of registration of motor vehicle for 12 months; juvenile becomes ineligible to obtain learners' license until the age of 25 years.
23.	Causing obstruction to free flow of traffic	Section 87	Fne of Rs. 500
24.	Overloading of two-wheelers (more than two people)		Rs 2000, Disqualification for 3 months for licence
25.	Driving without helmets		Rs 1000, Disqualification for 3 months for licence

Source : Ministry of Road Transport & Highways

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